

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0006922

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: UPHOLD HQ INC.

vs.

DEFENDANT: GRACIELA RAMONA
HERNANDEZ ROMERO, ET AL

NATURE OF PROCEEDINGS: MOTION – PRO HAC VICE

RULING

On April 28, 2026, Plaintiff UpHold Hq, Inc. filed a Notice of Hearing on Verified Application for Admission *Pro Hac Vice*. The application explains that applicant Jack Ryan, Esq. seeks admission *pro hac vice* and to be allowed to act as co-counsel along with local counsel Mark B. Chassman, Esq. of Meister Seelig & Schuster LLP, on behalf of Plaintiff Uphold HQ, Inc. for purposes of this action only.

Defendants have not filed a response, nor was an opposition to the application filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Plaintiff's application is therefore GRANTED in it's entirely.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0006929

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: GOLNESA
GHARACHEDAGHI

vs.

DEFENDANT: ROGERIO CALLEGARI

NATURE OF PROCEEDINGS: 1) DEMURRER
2) ORDER – SHOW CAUSE - FAILURE TO APPEAR

RULING

The demurrer of defendant Rogerio Callegari to the first amended complaint of plaintiff Golnesa Gharachedaghi is overruled as to the first through third and eighth causes of action, and sustained without leave to amend as to the fourth through seventh causes of action.

Background

Plaintiff alleges eight causes of action arising from Defendant's alleged misconduct in a business partnership. She alleges that he misappropriated \$330,000 she contributed to the partnership and did not fulfill his obligations under their partnership agreement.

Plaintiff filed her original complaint on July 17, 2025. Her first amended complaint filed on February 17, 2026 includes the following causes of action: (1) breach of contract; (2) breach of implied covenant of good faith and fair dealing; (3) breach of fiduciary duty; (4) fraud; (5) constructive fraud; (6) conversion; (7) violation of Penal Code section 496; and (8) unfair business practices

A. Procedural Issues

Defendant's demurrer fails to comply with California Rule of Court 3.1320(a).

“[e]ach ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”